

Imteyaz Hasan Beg v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 27 January 2023 · WRIT - C No. 649 of 2023
· **Writ dismissed for statutory remedy under Supply Code Chapter 6.**

HEADNOTE

A consumer who disputes an electricity bill or notice of arrears must approach the opposite parties under Chapter 6 of the Electricity Supply Code, 2005. The writ was dismissed for that statutory remedy, without any decision on the arrears or on the alleged 1998 permanent disconnection.

FACTUAL SUMMARY

The Executive Engineer issued a notice dated 10 October 2022 to Imteyaz Hasan Beg demanding electricity arrears said to be unpaid. Beg petitioned the Lucknow Bench, asserting that his connection had been permanently disconnected in 1998 and that opposite party no. 3 was pressing the demand by arm-twisting for extraneous considerations. His counsel also said opposite party no. 3 was misdescribed and ought to have been the Executive Engineer of the Electricity Distributing Division of Madhyanchal Vidyut Vitran Nigam Ltd., but no corrected description was placed on record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Chapter 6

statutory remedy for a disputed electricity bill or notice

HOLDING

If the petitioner disputes the electricity bill or notice issued by opposite party no. 3, the only remedy is to approach the opposite parties under Chapter 6 of the Electricity Supply Code, 2005. The writ petition is dismissed on the ground of availability of that statutory remedy. ¶ 1

PRINCIPLE TAGS

UP-2005::Chapter-6 The petitioner disputed a notice of electricity arrears. The Court treated Chapter 6 of the Electricity Supply Code, 2005 as the only remedy and dismissed the writ because that statutory remedy was available. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ARREARS DEMANDED BY THE NOTICE DATED 10 OCTOBER 2022 ARE PAYABLE, INCLUDING THE EFFECT OF THE ALLEGED PERMANENT DISCONNECTION IN 1998.

Left to the remedy under Chapter 6 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — CORRECTION OF THE DESCRIPTION OF OPPOSITE PARTY NO. 3 AS EXECUTIVE ENGINEER, ELECTRICITY DISTRIBUTING DIVISION, MADHYANCHAL VIDYUT VITRAN NIGAM LTD.

Counsel pointed out the misdescription. The Court recorded that no correct description had been given and dismissed the petition without amending the array. ¶ 1